

2.1 Application of these Rules

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > **Part 2 Application and Interpretation of the Rules**

Part 2

Application and Interpretation of the Rules

[3.7]

2.1 Application of these Rules

Unless the context otherwise requires, these rules apply to family proceedings in –

- (a) the High Court; and
- (b) the family court.

[3.7[1]]

Amendments—Substituted by [SI 2013/3204](#).

(1) 'family proceedings'

'family proceedings'—The term is defined in [MFPA 1984, s 32](#) and [SCA 1981, s 61\(1\)](#) (proceedings in the High Court) and [Courts Act 2003 s 75\(3\)](#). [SCA 1981, Sch 1](#) provides that the list in its para 3 shall be assigned to the Family Division. Proceedings in that list will be subject to FPR 2010; CPR 1998 cannot apply to such proceedings (CPR 1998, r 2.1(2)). Under [Courts Act 2003, s 75\(3\)](#) proceedings in the family court by definition are family proceedings.

'these rules apply to family proceedings'—[Courts Act 2003, s 75\(1\)](#) requires '[t]here ... to be rules of court (to be called "Family Procedure Rules") governing the practice and procedure to be followed in family proceedings' which are to apply to '(a) proceedings in the family court, and (b) proceedings in the Family Division of the High Court' (per [SCA 1981 s 61](#) and [Sch 1](#)).

'family proceedings in ... the family court'—The family court was created, with effect from 22 April 2014 by [Crime and Courts Act 2013, s 17\(3\)](#) and Sch 10 and by amendment of [MFPA 1984](#) by addition of ss 31A–31P. The Family Division of the High Court remains separate from the family court, although FPR 2010 apply to both. For the relationship between the family court and the High Court see in particular President's Guidance: Jurisdiction of the Family Court: Allocation of Cases Within the Family Court to High Court Judge Level and Transfer of Cases from the Family Court to the High Court (24 May 2021) at [5.119](#).

(2) Application of rules, practice directions and other measures

Rules—Rules are delegated legislation made by the Family Procedure Rules Committee under powers in the [Courts Act 2003, ss 75](#) and [76](#). Rules cannot make law (see eg *Dunhill v Burgin (Nos 1 and 2)* [2014] UKSC 18, [\[2014\] 1 WLR 933](#)), save where powers are delegated to the committee. Rules can only regulate the way the law proceeds in the family courts.

Practice directions—Practice directions are made by the President of the Family Division with the Lord Chief Justice under powers vested in them jointly by Constitutional Reform Act 2005 Sch 1 (*NY (A Child)* [2019] UKSC 49, [\[2019\] 3 WLR 962](#): Lord Wilson approving Brooke LJ in *U v Liverpool City Council (Practice Note)* [\[2005\] 1 WLR](#)

2.1 Application of these Rules

[2657](#), CA (at [48]): 'a practice direction has no legislative force. Practice directions provide invaluable guidance to matters of practice in the civil courts, but in so far as they contain statements of the law which are wrong they carry no authority at all.'

Practice guidance and other measures—As explained in the introduction to Pt V guidance (eg President's Guidance and other measures) are but guidance.

[3.8]

End of Document

2.2 The glossary

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- (1) The glossary at the end of these rules is a guide to the meaning of certain legal expressions used in the rules, but is not to be taken as giving those expressions any meaning in the rules which they do not have in the law generally.
- (2) Subject to paragraph (3), words in these rules which are included in the glossary are followed by 'GL'.
- (3) The word 'service', which appears frequently in the rules, is included in the glossary but is not followed by 'GL'.

[3.8[1]]

Glossary in CPR 1998—The glossary in FPR 2010 is derived from that in CPR 1998. The following terms occur in the CPR 1998 glossary and apply in proceedings under FPR 2010 but do not appear in the family proceedings Glossary:

- **Alternative dispute resolution** Collective description of methods of resolving disputes otherwise than through the normal trial process.
- **Base rate** The interest rate set by the Bank of England which is used as the basis for other banks' rates.
- **Divisional Court** With or without capital letters, means a divisional court constituted under [section 66](#) of the Senior Courts Act 1981.

[3.9]

2.3 Interpretation

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(1) In these rules –

'the 1958 Act' means the [Maintenance Orders Act 1958](#);

'the 1973 Act' means the [Matrimonial Causes Act 1973](#);

'the 1978 Act' means the Domestic Proceedings and Magistrates' Courts 1978;

'the 1980 Hague Convention' means the Convention on the Civil Aspects of International Child Abduction which was signed at The Hague on 25 October 1980;

'the 1984 Act' means the [Matrimonial and Family Proceedings Act 1984](#);

'the 1986 Act' means the [Family Law Act 1986](#);

'the 1989 Act' means the [Children Act 1989](#);

'the 1990 Act' means the [Human Fertilisation and Embryology Act 1990](#);

'the 1991 Act' means the [Child Support Act 1991](#);

'the 1996 Act' means the [Family Law Act 1996](#);

'the 1996 Hague Convention' means the Convention on Jurisdiction, Applicable Law, Recognition, Enforcement and Co-Operation in Respect of Parental Responsibility and Measures for the Protection of Children;

'the 2002 Act' means the [Adoption and Children Act 2002](#);

'the 2004 Act' means the Civil Partnership Act 2004;

'the 2005 Act' means the [Mental Capacity Act 2005](#);

'the 2007 Hague Convention' means the Convention on the International Recovery of Child Support and other forms of Family Maintenance done at The Hague on 23 November 2007;

'the 2008 Act' means the [Human Fertilisation and Embryology Act 2008](#);

'the 2014 Act' means the [Children and Families Act 2014](#);

'adoption proceedings' means proceedings for an adoption order under the 2002 Act;

'application form' means a document in which the applicant states his intention to seek a court order other than in accordance with the Part 18 procedure;

'application notice' means a document in which the applicant states his intention to seek a court order in accordance with the Part 18 procedure;

'Article 11 form' means a form published by the Permanent Bureau of the Hague Conference under Article 11(4) of the 2007 Hague Convention for use in relation to an application under Article 10 of that Convention, and includes a Financial Circumstances Form as defined in rule 9.3(1) which accompanies such an application;

'Assembly' means the National Assembly for Wales;

'bank holiday' means a bank holiday under the [Banking and Financial Dealings Act 1971](#) –

2.3 Interpretation

- (a) for the purpose of service of a document within the United Kingdom, in the part of the United Kingdom where service is to take place; and
- (b) for all other purposes, in England and Wales.

'business day' means any day other than –

- (a) a Saturday, Sunday, Christmas Day or Good Friday; or
- (b) a bank holiday;

'care order' has the meaning assigned to it by section 31(11) of the 1989 Act;

'CCR' means the County Court Rules 1981, as they appear in Schedule 2 to the CPR;

'child' means a person under the age of 18 years who is the subject of the proceedings; except that –

- (a) in adoption proceedings, it also includes a person who has attained the age of 18 years before the proceedings are concluded; and
- (b) in proceedings brought under *the Council Regulation*, the 1980 Hague Convention or the European Convention, it means a person under the age of 16 years who is the subject of the proceedings;

'child arrangements order' has the meaning given to it by section 8(1) of the 1989 Act;

'child of the family' has the meaning given to it by section 105(1) of the 1989 Act;

'children and family reporter' means an officer of the Service or a Welsh family proceedings officer who has been asked to prepare a welfare report under section 7(1)(a) of the 1989 Act or section 102(3)(b) of the 2002 Act;

'children's guardian' means –

- (a) in relation to a child who is the subject of and a party to specified proceedings or proceedings to which Part 14 applies, the person appointed in accordance with rule 16.3(1); and
- (b) in any other case, the person appointed in accordance with rule 16.4;

'civil partnership order' means one of the orders mentioned in section 37 of the 2004 Act;

'civil partnership proceedings' means proceedings for a civil partnership order;

'civil restraint order' means an order restraining a party –

- (a) from making any further applications in current proceedings (a limited civil restraint order);
- (b) from making certain applications in specified courts (an extended civil restraint order); or
- (c) from making any application in specified courts (a general civil restraint order);

'consent order' means an order in the terms applied for to which the respondent agrees;

'court' means, subject to any rule or other enactment which provides otherwise, the High Court or the family court;

(rule 2.5 relates to the power to perform functions of the court.)

'court officer' means a member of court staff;

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'CPR' means the Civil Procedure Rules 1998;

'deputy' has the meaning given in section 16(2)(b) of the 2005 Act;

'detailed assessment proceedings' means the procedure by which the amount of costs is decided in accordance with Part 47 of the CPR;

'directions appointment' means a hearing for directions;

'domestic abuse' has the meaning given in [sections 1](#) and [2](#) of the Domestic Abuse Act 2021;

'the European Convention' means the European Convention on Recognition and Enforcement of Decisions concerning Custody of Children and on the Restoration of Custody of Children which was signed in Luxembourg on 20 May 1980;

'filing', in relation to a document, means delivering it, by post or otherwise, to the court office;

'financial order' means –

- (a) an avoidance of disposition order;
- (b) an order for maintenance pending suit;
- (c) an order for maintenance pending outcome of proceedings;
- (d) an order for periodical payments or lump sum provision as mentioned in section 21(1) of the 1973 Act, except an order under section 27(6) of that Act;
- (e) an order for periodical payments or lump sum provision as mentioned in paragraph 2(1) of Schedule 5 to the 2004 Act, made under Part 1 of Schedule 5 to that Act;
- (f) a property adjustment order;
- (g) a variation order;
- (h) a pension sharing order;
- (i) a pension compensation sharing order; or
- (j) an order for payment in respect of legal services;

('variation order', 'pension compensation sharing order' and 'pension sharing order' are defined in rule 9.3)

'financial remedy' means –

- (a) a financial order;
- (b) an order under Schedule 1 to the 1989 Act;
- (c) an order under Part 3 of the 1984 Act except an application under section 13 of the 1984 Act for permission to apply for a financial remedy;
- (d) an order under Schedule 7 to the 2004 Act except an application under paragraph 4 of Schedule 7 to the 2004 Act for permission to apply for an order under paragraph 9 or 13 of that Schedule;
- (e) an order under section 27 of the 1973 Act;
- (f) an order under Part 9 of Schedule 5 to the 2004 Act;
- (g) an order under section 35 of the 1973 Act;
- (h) an order under paragraph 69 of Schedule 5 to the 2004 Act;
- (i) an order under Part 1 of the 1978 Act;
- (j) an order under Schedule 6 to the 2004 Act;

2.3 Interpretation

(k) an order under section 10(2) of the 1973 Act; or

(l) an order under section 48(2) of the 2004 Act;

'hearing' includes a directions appointment;

'hearsay' means a statement made, otherwise than by a person while giving oral evidence in proceedings, which is tendered as evidence of the matters stated, and references to hearsay include hearsay of whatever degree;

'incoming protection measure' means a protection measure that has been ordered in a Member State of the European Union other than *the United Kingdom or Denmark*;

'inherent jurisdiction' means the High Court's power to make any order or determine any issue in respect of a child, including in wardship proceedings, where it would be just and equitable to do so unless restricted by legislation or case law;

(Practice Direction 12D (Inherent Jurisdiction (including Wardship Proceedings)) provides examples of inherent jurisdiction proceedings.)

'judge' means –

(a) in the High Court, a judge or a district judge of that court (including a district judge of the principal registry) or a person authorised to act as such; and

(b) in the family court, a person who is –

(i) the Lord Chief Justice;

(ii) the Master of the Rolls;

(iii) the President of the King's Bench Division;

(iv) the President of the Family Division;

(v) the Chancellor of the High Court;

(vi) an ordinary judge of the Court of Appeal (including the vice-president, if any, of either division of that court);

(vii) the Senior President of Tribunals;

(viii) a puisne judge of the High Court;

(ix) a deputy judge of the High Court;

(x) a person who has been a judge of the Court of Appeal or a puisne judge of the High Court who may act as a judge of the family court by virtue of [section 9](#) of the Senior Courts Act 1981;

(xi) the Chief Taxing Master;

(xii) a taxing master of the Senior Courts;

(xiii) a person appointed to act as a deputy for the person holding office referred to in subparagraph (xii) or to act as a temporary additional officer for any such office;

(xiv) a circuit judge;

(xv) a Recorder;

(xvi) the Senior District Judge of the Family Division;

(xvii) a district judge of the principal registry;

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- (xviii) a person appointed to act as a deputy for the person holding office referred to in sub-paragraph (xvii) or to act as a temporary additional office holder for any such office;
- (xix) a district judge;
- (xx) a deputy district judge appointed under [section 102](#) of the Senior Courts Act 1981 or [section 8](#) of the County Courts Act 1984;
- (xxi) a District Judge (Magistrates' Courts);
- (xxii) a lay justice;
- (xxiii) any other judge referred to in section 31C(1) of the 1984 Act who is authorised by the President of the Family Division to conduct particular business in the family court;

'jurisdiction' means, unless the context requires otherwise, England and Wales and any part of the territorial waters of the United Kingdom adjoining England and Wales;

'justices' legal adviser' means a person authorised to exercise functions under [section 67B](#) of the Courts Act 2003 who has such qualifications as are prescribed by the Authorised Court Staff (Legal Advice Functions) Qualifications Regulations 2020;

'lay justice' means a justice of the peace who is not a District Judge (Magistrates' Courts);

'legal representative' means a –

- (a) barrister;
- (b) solicitor;
- (c) solicitor's employee;
- (d) manager of a body recognised under [section 9](#) of the Administration of Justice Act 1985; or
- (e) person who, for the purposes of the [Legal Services Act 2007](#), is an authorised person in relation to an activity which constitutes the conduct of litigation (within the meaning of the Act),

who has been instructed to act for a party in relation to proceedings;

'litigation friend' has the meaning given –

- (a) in relation to a protected party, by Part 15; and
- (b) in relation to a child, by Part 16;

'matrimonial cause' means proceedings for a matrimonial order;

'matrimonial order' means –

- (a) a divorce order made under section 1 of the 1973 Act;
- (b) a nullity of marriage order made on one of the grounds set out in section 11, 12 or 12A of the 1973 Act;
- (c) a judicial separation order made under section 17 of the 1973 Act;

'non-court dispute resolution' means methods of resolving a dispute other than through the court process, including but not limited to mediation, arbitration, evaluation by a neutral third party (such as a private Financial Dispute Resolution process) and collaborative law;

'note' includes a record made by mechanical means;

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'officer of the Service' has the meaning given by [section 11\(3\)](#) of the Criminal Justice and Court Services Act 2000;

'order' includes directions of the court;

'order for maintenance pending outcome of proceedings' means an order under paragraph 38 of Schedule 5 to the 2004 Act;

'order for maintenance pending suit' means an order under section 22 of the 1973 Act;

'order for payment for legal services' means an order under section 22ZA of the 1973 Act or an order under paragraph 38A of Part 8 of Schedule 5 to the 2004 Act;

'parental order proceedings' has the meaning assigned to it by rule 13.1;

'parental responsibility' has the meaning assigned to it by section 3 of the 1989 Act;

'placement proceedings' means proceedings for the making, varying or revoking of a placement order under the 2002 Act;

'principal registry' means the principal registry of the Family Division of the High Court;

'proceedings' means, unless the context requires otherwise, family proceedings as defined in [section 75\(3\)](#) of the Courts Act 2003;

'professional acting in furtherance of the protection of children' includes –

- (a) an officer of a local authority exercising child protection functions;
- (b) a police officer who is –
 - (i) exercising powers under section 46 of the Act of 1989; or
 - (ii) serving in a child protection unit or a paedophile unit of a police force,
- (c) any professional person attending a child protection conference or review in relation to a child who is the subject of the proceedings to which the information regarding the proceedings held in private relates;
- (d) an officer of the National Society for the Prevention of Cruelty to Children; or
- (e) a member or employee of the Disclosure and Barring Service, being the body established under [section 87\(1\)](#) of the Protection of Freedoms Act 2012;

'professional legal adviser' means a –

- (a) barrister;
- (b) solicitor;
- (c) solicitor's employee;
- (d) manager of a body recognised under [section 9](#) of the Administration of Justice Act 1985; or
- (e) person who, for the purposes of the [Legal Services Act 2007](#), is an authorised person in relation to an activity which constitutes the conduct of litigation (within the meaning of that Act),

who is providing advice to a party but is not instructed to represent that party in the proceedings;

'property adjustment order' means –

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- (a) in proceedings under the 1973 Act, any of the orders mentioned in section 21(2) of that Act;
- (b) in proceedings under the 1984 Act, an order under section 17(1)(a)(ii) of that Act;
- (c) in proceedings under Schedule 5 to the 2004 Act, any of the orders mentioned in paragraph 7(1);
or
- (d) in proceedings under Schedule 7 to the 2004 Act, an order for property adjustment under paragraph 9(2) or (3);

'protected party' means a party, or an intended party, who lacks capacity (within the meaning of the 2005 Act) to conduct proceedings;

'protection measure' has the meaning given to it in the Protection Measures Regulation;

'Protection Measures Regulation' means the Regulation (EU) No 606/2013 of the European Parliament and of the Council of 12 June 2013 on mutual recognition of protection measures in civil matters;

'reporting officer' means an officer of the Service or a Welsh family proceedings officer appointed to witness the documents which signify a parent's or guardian's consent to the placing of the child for adoption or to the making of an adoption order or a section 84 order;

'risk assessment' has the meaning assigned to it by section 16A(3) of the 1989 Act;

'RSC' means the Rules of the Supreme Court 1965 as they appear in Schedule 1 to the CPR;

'section 8 order' has the meaning assigned to it by section 8(2) of the 1989 Act;

'section 84 order' means an order made by the High Court under section 84 of the 2002 Act giving parental responsibility prior to adoption abroad;

'section 89 order' means an order made by the High Court under section 89 of the 2002 Act –

- (a) annulling a Convention adoption or Convention adoption order;
- (b) providing for an overseas adoption or determination under section 91 of the 2002 Act to cease to be valid; or
- (c) deciding the extent, if any, to which a determination under section 91 of the 2002 Act has been affected by a subsequent determination under that section;

'Service' has the meaning given by [section 11](#) of the Criminal Justice and Court Services Act 2000;

'specified proceedings' has the meaning assigned to it by section 41(6) of the 1989 Act and rule 12.27;

'welfare officer' means a person who has been asked to prepare a report under section 7(1)(b) of the 1989 Act;

'Welsh family proceedings officer' has the meaning given by [section 35\(4\)](#) of the Children Act 2004.

(2) In these rules a reference to –

- (a) an application for a matrimonial order or a civil partnership order is to be read as a reference to an application for –
 - (i) a matrimonial order; or
 - (ii) *(Omitted)*
 - (iii) a civil partnership order,

and includes an application by a respondent asking for such an order;

2.3 Interpretation

- (b) 'financial order' in matrimonial proceedings is to be read as a reference to 'ancillary relief';
- (c) 'matrimonial proceedings' is to be read as a reference to a matrimonial cause.
- (3) Where these rules apply the CPR, they apply the CPR as amended from time to time.
- (4) *(Omitted)*

[3.9[1]]

Amendments—[SI 2011/1328](#); [SI 2012/679](#); [SI 2012/2007](#); [SI 2012/2046](#); [SI 2012/2806](#); [SI 2012/3006](#); [SI 2013/1472](#); [SI 2013/3204](#); [SI 2014/667](#); [SI 2014/843](#); [SI 2014/3296](#); [SI 2015/913](#); [SI 2019/517](#); [SI 2020/135](#); [SI 2022/44](#); [SI 2023/61](#); [SI 2023/1324](#).

Modifications—Modified by FPR PD36N for applications made in the period commencing on 27 May 2019 and ending at the end of the day on 31 December 2024 by (i) uploading the document to the online system referred to in that Practice Direction, or (ii) submitting the information via that online system; definition of 'filing' modified by FPR PD5D for certain applications filed or sent or after 3 April 2022; FPR PD36ZC for certain applications filed in the period commencing 6 April 2022 and ending 31 May 2024, subject to any extension of the pilot or amendment of the Rules; FPR PD36ZD for certain applications filed in the period commencing 20 April 2022 and ending 31 March 2027; FPR PD41D for certain applications filed on or after 1 November 2022; FPR PD41E for certain applications filed on or after 18 May 2023; FPR PD41F for certain applications filed on or after 1 April 2024; FPR PD41H for certain applications filed on or after 1 January 2025.

Interpretation provisions in the rules—While FPR 2010, r 2.3 deals with 'interpretation' of certain terms within FPR 2010 as a whole, some individual Parts have their own internal sets of interpretation rules (eg FPR 2010, r 12.2 for children proceedings and FPR 2010, r 9.3 for financial remedy proceedings). Most of those apply only to the Part in question.

(1) Notes about interpretation of terms included in r 2.3(1)**[3.9[2]]**

'application form' and 'application notice': starting proceedings under FPR 2010—A party to FPR 2010 family proceedings applies for any remedy, either (1) by 'application form' (see FPR 2010, Pt 5) for an originating process (generic or FPR 2010, Pt 19)); or (2) by 'application notice' for an interim or pre-/post-action remedy (FPR 2010, Pt 18; and see for example interim remedies per FPR 2010, Pt 20). In Pt 5 (start of proceedings etc), the term 'application form' does not appear: it is used only in the heading to FPR 2010, r 5.3. The rules leave parties to imply the term into the process of issue of family courts originating applications in Pt 5. This is significant because the rules seem deliberately to make no reference in each Part to issue of a specific form of process, so applicants will need to depend on Pt 5, the accompanying FPR PD5A and the list of forms for issue, and the definition terminology in FPR 2010, r 2.3(1). This in its turn depends on understanding the meaning of what is 'other than ... the Part 18 procedure'.

'application form... other than in accordance with the Part 18 procedure'—If the application is not made within the terms of Pt 18 (ie an interim order application), then r 2.3(1) provides that the application must be issued by 'application form', that is to say in accordance with the applications provided for in FPR 2010, Pt 5.

'child'—The statutory provisions that deal with family law, including statutes that are relevant to FPR 2010, provide a variety of different definitions of 'child'. Only a restricted number of these is touched on by FPR 2010, r 2.3(1). A full list would include: [ACA 2002, s 49\(5\)](#) (up to age 19 provided proceedings issued before age 18); [ChA 1989, s 105\(10\)](#); [ChA 1989, Sch 1, paras 2 and 6](#) (over 18 for certain financial remedy proceedings); [CSA 1991, s 55](#); [MCA 1973, s 52](#) and CPA 2004; [I\(PFD\)A 1975, s 25\(1\)](#); and CPR 1998, rr 2.3(1) and 21.1(2).

2.3 Interpretation

'detailed assessment proceedings' and 'summary assessment'—Detailed assessment proceedings, but not either detailed assessment or summary assessment, for which see CPR 1998, r 44.1.

'filing'—For the definition of 'filing' substitute 'filing' in relation to supplying a document or information means (a) delivering it, by post or otherwise, to the court office; or (b) where Practice Direction 41H applies, by (i) uploading the document to the online system referred to in that Practice Direction; or (ii) submitting the information via that online system.

'financial order' and 'financial remedy'—The main terms comprised in these two definitions are distributed among [MCA 1973](#) and other statutory and common law sources, in FPR 2010, r 2.3 and 9.3. The following notes are intended to accompany the table below, to explain the various terminologies and to provide a guide for financial remedy costs orders under Pt 28. ([MCA 1973](#) remedies in all cases have parallel CPA 2004 remedies.)

'financial remedy'—This is defined to include all statutory remedies available under family proceedings legislation. In addition, there are a number of common law remedies (eg interim periodical payments are referred to in the rules (see r 9.7(1)), but not in any statute save [MFPA 1984, s 14](#) and under [MFPA 1984, s 31F\(2\)\(b\)](#)). 'Ancillary relief' remains the statutory term under [MCA 1973](#) (which comprises most financial relief on relationship breakdown).

'non-court dispute resolution'—Note the expanded definition of this term to include arbitration, evaluation by a neutral third-party evaluation (such as a private FDR) and collaborative law by way of examples in addition to mediation. Mediation itself may become rather more common given the decision in *Churchill v Merthyr Tydfil County Borough Council* [2023] EWCA Civ 1416 in which the court held proceedings may be stayed for ADR even where one party is unwilling to engage provided it is proportionate to do so and the essence of the parties' right to a judicial hearing is not impaired.

'officer of the service'—This is defined by [ChA 1989, s 105\(1\)](#) and here as having the same meaning as in [CJCSA 2000](#), ie s 12(1).

'protected party'—The meaning of 'protected party' and a person 'who lacks capacity' is further explained in FPR 2010, r 15.1.

(2) Terms not 'interpreted' in r 2.3(1) or within individual Parts

[3.9[3]]

Answer—Proceedings are started by application form (originating application, including by the FPR 2010, Pt 19 procedure) or application notice. There is no generic term – save possibly 'answer' – to describe the respondent's or another party's statement of case in reply to an application (ie 'defence' in other civil proceedings). FPR 2010, r 4.1(1) is probably the nearest that the rules get to a definition of a term that describes the application and answer forms that parties exchange (where the rules provide for it) to describe their claim and opposition to that claim, and in r 4.1(1) the term 'answer' is used.

Early neutral evaluation—Under CPR 1998, r 3.1(2)(m) the court has power in proceedings under I(PFD)A 1975 to compel parties to take part in early neutral evaluation (ENE) (*Lomax v Lomax* [2019] EWCA Civ 1467, [\[2019\] 1 WLR 6527](#)). Rule 4.1(3)(o) is in similar terms to r 3.1(2)(m), but does not specify ENE as does r 3.1(2).

Party—See [SCA 1981, s 151\(1\)](#) and [CCA 1984, s 147\(1\)](#), as explained in *Re W (A Child)* [\[2017\] 1 FLR 1629](#), CA, at [21]–[24].

Private—FPR 2010, r 27.10 states that all proceedings under FPR 2010 are to be 'held in private', save where the rules provide otherwise, or the court directs differently. Save to say that it means the public has no right to be present, it gives no other meaning for 'in private'. For example, in *Clibbery v Allan* [\[2002\] 1 FLR 565](#), CA, the proceedings (under FLA 1996, Pt 4) were held 'in private'; but the Court of Appeal said this meant the public could

2.3 Interpretation

attend and that a party could release to the press documents not otherwise denied from use (FPR 2010, Pt 21; CPR 1998, r 31.11 and the 'implied undertaking').

Reporter—*President's Guidance as to Reporting in the Family Courts* of 3 October 2019 para 2 defines 'reporter' as a term collectively used for journalists and legal bloggers permitted to attend private hearings under FPR 2010, r 27.11(2)(f) and (ff).

Forms

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[3.10]

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2.4 Modification of rules in application to serial numbers etc.

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If a serial number has been assigned under rule 14.2 or the name or other contact details of a party is not being revealed in accordance with rule 29.1 –

- (a) any rule requiring any party to serve any document will not apply; and
- (b) the court will give directions about serving any document on the other parties.

[3.11]

End of Document

2.5 Power to perform functions conferred on the court by these rules and practice directions

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- (1) Where these rules or a practice direction provide for the court to perform any function then, except where any rule or practice direction or any other enactment provides otherwise, that function may be performed—
 - (a) in relation to proceedings in the High Court or in a district registry, by any judge or district judge of that Court including a district judge of the principal registry;
 - (b) in relation to proceedings in the family court –
 - (i) by the court composed in accordance with rules made under section 31D of the 1984 Act; or
 - (ii) where Practice Direction 2A applies, by a single lay justice who is authorised as specified in rules made under section 31D of the 1984 Act.
 - (c) *(Omitted)*
- (1A) The functions of the family court or a judge of the family court listed in Practice Direction 2C may be exercised by a justices' legal adviser.
- (1B) The functions of the High Court listed in Practice Direction 2D may be exercised by a court officer who meets the criteria specified in that Practice Direction.
- (1C) Practice Direction 2D may make provision for the procedure to be followed where such a court officer exercises a function of the High Court.
- (2) A deputy High Court judge and a district judge, including a district judge of the principal registry, may not try a claim for a declaration of incompatibility in accordance with section 4 of the Human Rights Act 1998.

[3.11[1]]

Amendments—[SI 2013/3204](#); [SI 2014/667](#); [SI 2020/135](#); [SI 2023/1324](#).

Defined terms—'district judge', 'district registry', 'principal registry': r 2.3(1).

Declaration of compatibility (r 2.5(2))—HRA 1998, s 4(5) defines which court can deal with declarations of compatibility (eg Supreme Court, Court of Appeal and High Court), but sitting in the High Court a deputy judge or district judge cannot hear such an application.

Allocation to family courts—This rule must be read alongside the allocation guidance in President's Guidance of 24 May 2021: *Jurisdiction of the Family Court: allocation of cases within the family court to High Court judge level and transfer of cases from the Family Court to the High Court*. At all times it must be recalled that this is but guidance. It is not binding on parties, judges or on court staff who issue proceedings.

[3.12]

2.6 Powers of the single justice to perform functions under the 1989 Act, the 1996 Act, the 2002 Act and the Childcare Act 2006

The Family Court Practice (The Red Book) > Part III Procedure Rules (FPR and CPR) > SI 2010/2955 Family Procedure Rules 2010 > Part 2 Application and Interpretation of the Rules

- (1) A single lay justice who is authorised as specified in rules made under section 31D of the 1984 Act may perform the functions of the family court –
 - (a) where an application without notice is made under sections 10, 44(1), 48(9), 50(4) and 102(1) of the 1989 Act;
 - (b) subject to paragraph (2), under sections 11(3) or 38(1) of the 1989 Act;
 - (c) under sections 4(3)(b), 4A(3)(b), 4ZA(6)(b), 7, 34(3)(b), 41, 44(9)(b) and (11)(b)(iii), 48(4), 91(15) or (17) or paragraph 11(4) of Schedule 14 of the 1989 Act;
 - (d) *(Omitted)*
 - (e) where an application without notice is made under section 41(2) of the 2002 Act (recovery orders);
 - (f) where an application without notice is made for an occupation order or a non-molestation order under Part 4 of the 1996 Act; or
 - (g) where an application is made for a warrant under [section 79](#) of the Childcare Act 2006.
- (2) A single lay justice may make an order under section 11(3) or 38(1) of the 1989 Act where –
 - (a) a previous such order has been made in the same proceedings;
 - (b) the terms of the order sought are the same as those of the last such order made; and
 - (c) a written request for such an order has been made and –
 - (i) the other parties and any children's guardian consent to the request and they or their legal representatives have signed the request; or
 - (ii) at least one of the other parties and any children's guardian consent to the request and they or their legal representatives have signed the request, and the remaining parties have not indicated that they either consent to or oppose the making of the order.
- (3) The proceedings referred to in paragraph (1)(a) and (c) are proceedings which are prescribed for the purposes of section 93(2)(i) of the 1989 Act.

[3.12[1]]

Amendments—[SI 2014/667](#).

'section 93(2)(i) of the 1989 Act' (r 2.6(3))—This paragraph was repealed by CCA 2013, Sch 11, para 110.

Satisfying the conditions in r 2.6(2)—All three conditions must be satisfied before the order can be made. It follows that a single lay justice or justices' legal adviser can never grant the first interim order in a case but only a second or subsequent interim order, and then only if the order is in identical terms to the last such order, there is a written request for such an order and either signed consent of all parties or signed consent of at least one of the other parties and any children's guardian and no indication of opposition from remaining parties.

2.6 Powers of the single justice to perform functions under the 1989 Act, the 1996 Act, the 2002 Act and the
Childcare Act 2006

Written and signed request—There is no prescribed form for the making of such a request. The *Handbook of Best Practice* (see above) contains a draft application form that is tailored to this situation. It will not always be practical for all parties who wish to do so to endorse their consent on the written request itself and, in these circumstances, it ought to suffice if copies are signed and filed with the original.

[3.13]

End of Document

2.7 Single lay justice: power to refer to the family court

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 2 Application and Interpretation of the Rules](#)

Where a single lay justice –

- (a) is performing a function of the family court in accordance with rule 2.5(1)(b)(ii) or rule 2.6(1) or (2);
and
- (b) considers, for whatever reason, that it is inappropriate to perform the function,

the single lay justice must refer the matter to the family court.

[3.13[1]]

Amendments—[SI 2014/667](#).

Power to refer to a full court—This rule provides for a single lay justice to refer the matter to a full court in an appropriate case. Identical provision is made for a justices' legal adviser performing the powers of a single lay justice to refer the matter to the court by virtue of JCAR 2014, r 4.

[3.14]

2.8 Court's discretion as to where it deals with cases

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 2 Application and Interpretation of the Rules](#)

The court may deal with a case at any place that it considers appropriate.

[3.14[1]]

Defined terms—'court', 'hearing': r 2.3(1).

'hearing'—'Hearing' comprises any court appointment before any judge or court (eg hearing in a solicitors' office: in *Oral Contraceptive Group Litigation XYZ & Ors v Schering Health Care Ltd & Ors* [2004] EWHC 823 (QB) the scale of documents involved justified detailed assessment being dealt with in a solicitors' office).

Hearing 'at any place [which the court] considers appropriate'—The court is final arbiter of where the hearing should take place. A venue more appropriate to a child or a protected party might be fixed, even if only for part of a hearing, at wherever the child or protected party is living.

Application—An order for a defined venue can be made on the initiative of the court (FPR 2010), r 4.3) or on application under the FPR 2010, Pt 18 procedure (see especially FPR 2010, rr 18.9 and 18.10: hearings without attendance). The court will be concerned with the overriding objective, especially of 'saving expense' to the parties, where it considers an alternative venue for a hearing. Where numerous witnesses and a child involved in the case are distant from the court, there may be an economic argument for a removed hearing.

[3.15]

2.9 Computation of time

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 2 Application and Interpretation of the Rules](#)

- (1) This rule shows how to calculate any period of time for doing any act which is specified –
 - (a) by these rules;
 - (b) by a practice direction; or
 - (c) by a direction or order of the court.
- (2) A period of time expressed as a number of days must be computed as clear days.
- (3) In this rule 'clear days' means that in computing the numbers of days –
 - (a) the day on which the period begins; and
 - (b) if the end of the period is defined by reference to an event, the day on which that event occurs,

are not included.

- (4) Where the specified period is 7 days or less and includes a day which is not a business day, that day does not count.
- (5) When the period specified –
 - (a) by these rules or a practice direction; or
 - (b) by any direction or order of the court,

for doing any act at the court office ends on a day on which the office is closed, that act will be in time if done on the next day on which the court office is open.

[3.15[1]]

Defined terms—'business day': r 2.3(1); 'clear days': rr 2.3(1), 2.9(3).

Derivation—Rule 2.9 is derived from CPR 1998, r 2.8 whose operation (at CPR 1998 r, 2.8(3)) is explained in *Boodia v Yatsyna* [2021] EWCA Civ 1705, [\[2021\] 4 WLR 142](#) (below).

Use of a calendar date and time—Rule 2.9 must be read in conjunction with FPR 2010, r 2.10, which requires dates and times to be specified in orders. If r 2.10 is followed, it should avoid many of the pitfalls that r 2.9 seeks to mitigate or provide for.

'7 days or less' (r 2.9(4))—CPR 1998, r 2.8(4) retains the shorter period of '5 days or less'.

'At least' x days before a given event—Where an order or other instrument says an act must be done 'at least' so many days before a specific event, that period is not extended by the 'clear days' requirement of r 2.9(3) (*Boodia v Yatsyna* [2021] EWCA Civ 1705, [\[2021\] 4 WLR 142](#) (at [44])). If time needs extending application can be made under FPR 2010, r 4.1(3)(a) (or CPR 1998, r 3.1(2)(a)) or an extension can be granted on the court's initiative (FPR 2010, r 4.3(1) or CPR 1998, r 3.3(1)).

2.9 Computation of time

Calculation of 'within 7 days', or the application will be struck out—For example, where a step in proceedings must be completed 'within 7 days' (ie 'clear days': r 2.9(2)) of a Tuesday:

- (1) The 7 days starts the next day (Wednesday), followed by 7 business days. This takes the period to Friday in the following week for filing and service (ie 7 clear business days).
- (2) If the Tuesday is in the week before Easter, the document must be filed and served:
 - (a) Time starts to run on the Wednesday (r 2.9(3)(b)) and the Easter weekend 'does not count' (r 2.9(4)). There are 2 business days before, and 4 in the week after, Easter: total 6 days to the weekend after Easter).
 - (b) The weekend 'does not count' (r 2.9(4)), Monday is the final day.
 - (c) The period being '7 days or less' (r 2.9(4)) and 'clear days' being specified by the order, time expires on the Tuesday 2 weeks after time began to run.

[3.16]

2.10 Dates for compliance to be calendar dates and to include time of day

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 2 Application and Interpretation of the Rules](#)

- (1) Where the court makes an order or gives a direction which imposes a time limit for doing any act, the last date for compliance must, wherever practicable –
 - (a) be expressed as a calendar date; and
 - (b) include the time of day by which the act must be done.
- (2) Where the date by which an act must be done is inserted in any document, the date must, wherever practicable, be expressed as a calendar date.
- (3) Where 'month' occurs in any order, direction or other document, it means a calendar month.

[3.16[1]]

Defined terms—'month': r 2.10(3); thus, to avoid uncertainty, the preference must be for an order to specify a date and time (per r 2.10(1): ie not a number of days).